

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD**R/SPECIAL CRIMINAL APPLICATION (QUASHING) NO. 10917 of 2025**

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PANKAJ DUBEY

Versus

SUMEDHA PANKAJ DUBEY D/O SHRAVANKUMAR PANDEY & ANR.

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Appearance:

MR VB KUNDAN SINGH(3021) for the Applicant(s) No. 1

MR MANAN MEHTA, APP for the Respondent(s) No. 2

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CORAM:HONOURABLE MR. JUSTICE HASMUKH D. SUTHAR**Date : 07/08/2025****ORAL ORDER**

1. Heard learned advocates for the respective parties.
2. By way of this application under Section 528 of the Bharatiya Nagarik Suraksha Sanhita (BNSS), the applicant has prayed to quash and set aside the judgment and order dated 31.08.2024 passed by the learned Family Court, Ahmedabad in Criminal Misc. Application No. 1111 of 2022, annexed herewith as Annexure-A.
3. Upon perusal of the impugned order dated 31st August, 2024, it prima facie appears that the applicant-husband had raised a dispute regarding the affidavit submitted by his wife in Criminal Misc. Application No. 1111 of 2022 pending before the Family Court, Ahmedabad. The wife had filed the said affidavit pursuant to the directions issued by the Hon'ble Apex Court in the case of *Rajnish vs. Neha*, reported in 2021 (2) SCC 324. The applicant sought initiation of criminal proceedings under Sections 195 and 340 of the Criminal Procedure Code on the

ground that a false affidavit had been filed by the wife.

4. The learned Family Court, however, was pleased to decide the said application along with the main matter, assigning the reason that the allegations regarding the false affidavit or the averments made therein require to be proved by leading evidence. It was observed that without recording any evidence, the Court cannot take a pre-trial decision, as such a step would unnecessarily prolong the proceedings in the main matter.

5. Considering the aforesaid facts, since the application was not dismissed outright but was kept to be decided along with the main matter, no case of perversity or illegality is made out, nor is any prejudice caused to the present applicant. Accordingly, the present application stands dismissed.

ALI

(HASMUKH D. SUTHAR,J)

Original copy of this order has been signed by the Hon'ble Judge.
Digitally signed by: ISTAYAK ALI(HC01093), PRIVATE SECRETARY, at High Court of Gujarat on 07/08/2025 17:54:08